CHAPTER 57 National Human Rights Commission

Establishment

The National Human Rights Commission is a statutory (and not a constitutional) body. It was established in 1993 under a legislation enacted by the Parliament, namely, the Protection of Human Rights Act, 1993.

The commission is the watchdog of human rights in the country, that is, the rights relating to life, liberty, equality and dignity of the individual guaranteed by the Constitution or embodied in the international covenants[1] and enforceable by courts in India.

The specific objectives of the establishment of the commission are[2]:

1. To strengthen the institutional arrangements through which human rights issues could be addressed in their entirety in a more focussed manner;
2. To look into allegations of excesses, independently of the government, in a manner that would underline the government's commitment to protect human rights; and
3. To complement and strengthen the efforts that have already been made in this direction.

Composition

The commission is a multi-member body consisting of a chairperson and five members. The chairperson should be a retired chief justice of India or a judge of the supreme court and members should be a serving or retired judge of the Supreme Court, a serving or retired chief justice of a high court and three persons (out of which atleast one should be a woman) having knowledge or practical experience with respect to human rights. In addition to these full-time members, the commission also has seven ex-officio members—the chairpersons of the National Commission for Minorities, the National Commission for SCs, the National Commission for STs, the National Commission for Women, the National Commission for BCs and the National Commission for Protection of Child Rights and the Chief commissioner for persons with Disabilities.



The chairperson and members are appointed by the President on the recommendations of a six-member committee consisting of the prime minister as its head, the Speaker of the Lok Sabha, the Deputy Chairman of the Rajya Sabha, leaders of the Opposition in both the Houses of Parliament and the Central home minister. Further, a sitting judge of the Supreme Court or a sitting chief justice of a high court can be appointed only after consultation with the chief justice of India.